Filing # 219982540 E-Filed 03/31/2025 05:01:07 PM

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

vs.

MARC M. MOSZKOWSKI,

Defendant.
_____/

Case No.: 2018 CA 000543
Division:

WRITTEN STATEMENT FOR CASE MANAGEMENT CONFERENCE

Comes now, Plaintiffs, DeepGulf, Inc. and Toke Oil and Gas, S.A., by and through its undersigned attorney, and submits this written statement in response to the Order Setting Case Management Conference.

1. Undisputed Issues. Those items admitted to by Defendant in Paragraphs 1-8, 11-18, 20-24, 28, 31,35, 38, 40-45, 67-70, 74-77, 79-82, 99, and 102-103 (Plaintiffs acknowledge that some of those paragraphs involve partial admissions).

2. Disputed Issues. All of the issues described in the Affirmative Defenses and counterclaims filed by Defendant, which are subject to a Motion to Strike and a Motion to Dismiss, which have not been heard by the court yet. All issues related to Defendant's activities involving East Timor, including, but not limited to, the breach of his noncompetition agreement, whether Defendant is liable for civil theft, conversion of assets of the Plaintiff, whether the Defendant made fraudulent misrepresentations relating to the Private Placement Memorandum, declaratory relief as to the ownership of Toke Oil & Gas, S.A., whether or not Plaintiffs are entitled to an accounting

from Defendant, whether or not Plaintiffs are entitled to injunctive relief related to intellectual property of DeepGulf, Inc.

3. Issues of Law. All of the issues stated in Paragraph 2 are issues of fact, as well as containing issues of law related to the various claims made by Defendant. Those issues include the elements of the various claims and the application to the facts presented at a trial.

4. (a) Issues in dispute that cannot be resolved by mediation. Certainly, the parties to this case can resolve all alleged issues in the case; however, practically, Plaintiffs believe that a mediation will not be fruitful based upon the prior mediation it the related federal court case which ended in an impasse.

(b) Information needed and schedule for obtaining necessary information before a mediation conference. Whether or not Defendant can pay for the costs associated with the proposed mediation.

5. Proposed discovery schedule. Depending on the date set for a final hearing, Plaintiffs would recommend that written discovery be completed 120 days prior to a final hearing, with discovery by deposition be completed by 60 days prior to a final hearing.

BRADEN K. BALL, JR.
Florida Bar No. 89000
LITVAK BEASLEY WILSON & BALL, LLP
40 Palafox Place, Suite 300
Pensacola, Florida 32502
Telephone: (850) 432-9818
Facsimile: (850) 432-9830
Attorneys for Plaintiffs
Primary E-mail: braden@lawpensacola.com
Secondary E-mail: mandrews@lawpensacola.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 31st day of March, 2025, a copy of the foregoing has been furnished to the Defendant, Marc M. Moszkowski, Le Verdos, 83300 Chateaudouble, France (m.moszkowski@deepgulf.net) via the Court's E-filing system.

BRADEN K. BALL, JR.
Florida Bar No. 89000
LITVAK BEASLEY WILSON & BALL, LLP
40 Palafox Place, Suite 300
Pensacola, Florida 32502
Telephone: (850) 432-9818
Facsimile: (850) 432-9830
Attorneys for Plaintiffs
Primary E-mail: braden@lawpensacola.com
Secondary E-mail: mandrews@lawpensacola.com